

**PROJECT MKULTRA, THE CIA'S PROGRAM OF
RESEARCH IN BEHAVIORAL MODIFICATION**

**JOINT HEARING
BEFORE THE
SELECT COMMITTEE ON INTELLIGENCE
AND THE
SUBCOMMITTEE ON
HEALTH AND SCIENTIFIC RESEARCH
OF THE
COMMITTEE ON HUMAN RESOURCES
UNITED STATES SENATE
NINETY-FIFTH CONGRESS
FIRST SESSION**

AUGUST 3, 1977



Printed for the use of the Select Committee on Intelligence
and Committee on Human Resources

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PROJECT MKULTRA, THE CIA'S PROGRAM OF RESEARCH IN BEHAVIORAL MODIFICATION

WEDNESDAY, AUGUST 3, 1977

U.S. SENATE,
SELECT COMMITTEE ON INTELLIGENCE,
AND SUBCOMMITTEE ON HEALTH
AND SCIENTIFIC RESEARCH
OF THE COMMITTEE ON HUMAN RESOURCES,
Washington, D.C.

The committees met, pursuant to notice, at 9:07 a.m. in room 1202, Dirksen Senate Office Building, Senator Daniel K. Inouye (chairman — of the Select Committee on Intelligence) presiding.

Present: Senators Inouye (presiding), Kennedy, Goldwater, Bayh, Hathaway, Huddleston, Hart, Schweiker, Case, Garn, Chafee, Lugar and Wallop.

Also present: William G. Miller, staff director, Select Committee on Intelligence; Dr. Lawrence Horowitz, staff director, Subcommittee on Health and Scientific Research; and professional staff members of both committees.

Senator INOUE. The Senate Select Committee on Intelligence is meeting today and is joined by the Subcommittee on Health and Scientific Research chaired by Senator Edward Kennedy of Massachusetts and Senator Richard Schweiker of Pennsylvania. Senator Hathaway and Senator Chafee are members of both committees. We are to hear testimony from the Director of Central Intelligence, Adm. Stansfield Turner, and from other Agency witnesses on issues concerning new documents supplied to the committee in the last week on drug testing conducted by the Central Intelligence Agency.

It should be made clear from the outset that in general, we are focusing on events that happened over 12 or as long as 25 years ago. It should be emphasized that the programs that are of greatest concern have stopped and that we are reviewing these past events in order to better understand what statutes and other guidelines might be necessary to prevent the recurrence of such abuses in the future. We also need to know and understand what is now being done by the CIA in the field of behavioral research to be certain that no current abuses are occurring.

I want to commend Admiral Turner for his full cooperation with this committee and with the Subcommittee on Health in recognizing that this issue needed our attention. The CIA has assisted our committees and staffs in their investigative efforts and in arriving at remedies which will serve the best interests of our country.

The reappearance of reports of the abuses of the drug testing program and reports of other previously unknown drug programs and projects for behavioral control underline the necessity for effective oversight procedures both in the executive branch and in the Congress. The Select Committee on Intelligence has been working very closely with President Carter, the Vice President, and Admiral Turner and his associates in developing basic concepts for statutory guidelines which will govern all activities of the intelligence agencies of the United States.

In fact, it is my expectation that the President will soon announce his decisions on how he has decided the intelligence agencies of the United States shall be organized. This committee will be working closely with the President and Admiral Turner in placing this new structure under the law and to develop effective oversight procedures.

It is clear that effective oversight requires that information must be full and forthcoming. Full and timely information is obviously necessary if the committee and the public is to be confident that any transgressions can be dealt with quickly and forcefully.

One purpose of this hearing is to give the committee and the public an understanding of what new information has been discovered that adds to the knowledge already available from previous Church and Kennedy inquiries, and to hear the reasons why these documents were not available to the Church and Kennedy committees. It is also the purpose of this hearing to address the issues raised by any additional illegal or improper activities that have emerged from the files and to develop remedies to prevent such improper activities from occurring again.

Finally, there is an obligation on the part of both this committee and the CIA to make every effort to help those individuals or institutions that may have been harmed by any of these improper or illegal activities. I am certain that Admiral Turner will work with this committee to see that this will be done.

I would now like to welcome the most distinguished Senator from Massachusetts, the chairman of the Health Subcommittee, Senator Kennedy.

Senator KENNEDY. Thank you very much, Mr. Chairman. We are delighted to join together in this very important area of public inquiry and public interest.

Some 2 years ago, the Senate Health Subcommittee heard chilling testimony about the human experimentation activities of the Central Intelligence Agency. The Deputy Director of the CIA revealed that over 30 universities and institutions were involved in an "extensive testing and experimentation" program which included covert drug tests on unwitting citizens "at all social levels, high and low, native Americans and foreign." Several of these tests involved the administration of LSD to "unwitting subjects in social situations."

At least one death, that of Dr. Olsen, resulted from these activities. The Agency itself acknowledged that these tests made little scientific sense. The agents doing the monitoring were not qualified scientific observers. The test subjects were seldom accessible beyond the first hours of the test. In a number of instances, the test subject became ill for hours or days, and effective followup was impossible.

Other experiments were equally offensive. For example, heroin addicts were enticed into participating in LSD experiments in order to get a reward—heroin.

Perhaps most disturbing of all was the fact that the extent of experimentation on human subjects was unknown. The records of all these activities were destroyed in January 1973, at the instruction of then CIA Director Richard Helms. In spite of persistent inquiries by both the Health Subcommittee and the Intelligence Committee, no additional records or information were forthcoming. And no one—no single individual—could be found who remembered the details, not the Director of the CIA, who ordered the documents destroyed, not the official responsible for the program, nor any of his associates.

We believed that the record, incomplete as it was, was as complete as it was going to be. Then one individual, through a Freedom of Information request, accomplished what two U.S. Senate committees could not. He spurred the agency into finding additional records pertaining to the CIA's program of experimentation with human subjects. These new records were discovered by the agency in March. Their existence was not made known to the Congress until July.

The records reveal a far more extensive series of experiments than had previously been thought. Eighty-six universities or institutions were involved. New instances of unethical behavior were revealed.

The intelligence community of this Nation, which requires a shroud of secrecy in order to operate, has a very sacred trust from the American people. The CIA's program of human experimentation of the fifties and sixties violated that trust. It was violated again on the day the bulk of the agency's records were destroyed in 1973. It is violated each time a responsible official refuses to recollect the details of the program. The best safeguard against abuses in the future is a complete public accounting of the abuses of the past.

I think this is illustrated, as Chairman Inouye pointed out. These are issues, are questions that happened in the fifties and sixties, and go back some 15, 20 years ago, but they are front page news today, as we see in the major newspapers and on the television and in the media of this country; and the reason they are, I think, is because it just continuously begins to trickle out, sort of, month after month, and the best way to put this period behind us, obviously, is to have the full information, and I think that is the desire of Admiral Turner and of the members of this committee.

The Central Intelligence Agency drugged American citizens without their knowledge or consent. It used university facilities and personnel without their knowledge. It funded leading researchers, often without their knowledge.

These institutes, these individuals, have a right to know who they are and how and when they were used. As of today, the Agency itself refuses to declassify the names of those institutions and individuals, quite appropriately, I might say, with regard to the individuals under the Privacy Act. It seems to me to be a fundamental responsibility to notify those individuals or institutions, rather. I think many of them were caught up in an unwitting manner to do research for the Agency. Many researchers, distinguished researchers, some of our most outstanding members of our scientific community, involved in

this network, now really do not know whether they were involved or not, and it seems to me that the whole health and climate in terms of our university and our scientific and health facilities are entitled to that response.

So, I intend to do all I can to persuade the Agency to, at the very least, officially inform those institutions and individuals involved.

Two years ago, when these abuses were first revealed, I introduced legislation, with Senator Schweiker and Senator Javits, designed to minimize the potential for any similar abuses in the future. That legislation expanded the jurisdiction of the National Commission on Human Subjects of Biomedical and Behavioral Research to cover all federally funded research involving human subjects. The research initially was just directed toward HEW activities, but this legislation covered DOD as well as the CIA.

This Nation has a biomedical and behavioral research capability second to none. It has had for subjects of HEW funded research for the past 3 years a system for the protection of human subjects of biomedical and behavioral research second to none, and the Human Experimentation Commission has proven its value. Today's hearings and the record already established underscore the need to expand its jurisdiction.

The CIA supported that legislation in 1975, and it passed the Senate unanimously last year. I believe it is needed in order to assure all our people that they will have the degree of protection in human experimentation that they deserve and have every right to expect.

Senator INOUE. Thank you very much. Now we will proceed with the hearings. Admiral Turner?

[The prepared statement of Admiral Turner follows:]

PREPARED STATEMENT OF ADMIRAL STANSFIELD TURNER, DIRECTOR OF CENTRAL INTELLIGENCE

Mr. Chairman: In my letter to you of July 15, 1977, I reported our recent discovery of seven boxes of documents related to Project MKULTRA, a closely held CIA project conducted from 1953-1964. As you may recall, MKULTRA was an "umbrella project" under which certain sensitive subprojects were funded, involving among other things research on drugs and behavioral modification. During the Rockefeller Commission and Church Committee investigations in 1975, the cryptonym became publicly known when details of the drug-related death of Dr. Frank Olson were publicized. In 1953 Dr. Olson, a civilian employee of the Army at Fort Detrick, leaped to his death from a hotel room window in New York City about a week after having unwittingly consumed LSD administered to him as an experiment at a meeting of LSD researchers called by CIA.

Most of what was known about the Agency's involvement with behavioral drugs during the investigations in 1975 was contained in a report on Project MKULTRA prepared by the Inspector General's office in 1963. As a result of that report's recommendations, unwitting testing of drugs on U.S. citizens was subsequently discontinued. The MKULTRA-related report was made available to the Church Committee investigators and to the staff of Senator Kennedy's Subcommittee on Health. Until the recent discovery, it was believed that all of the MKULTRA files dealing with behavioral modification had been destroyed in 1973 on the orders of the then retiring Chief of the Office of Technical Service, with the authorization of the then DCI, as has been previously reported. Almost all of the people who had had any connection with the aspects of the project which interested Senate investigators in 1975 were no longer with the Agency at that time. Thus, there was little detailed knowledge of the MKULTRA subprojects available to CIA during the Church Committee investigations. This lack of available details, moreover, was probably not wholly attributable to the

destruction of MKULTRA files in 1973; the 1963 report on MKULTRA by the Inspector General notes on page 14: "Present practice is to maintain no records of the planning and approval of test programs."

When I reported to you last on this matter, my staff had not yet had an opportunity to review the newly located material in depth. This has now been accomplished, and I am in a position to give you a description of the contents of the recovered material. I believe you will be most interested in the following aspects of the recent discovery:

How the material was discovered and why it was not previously found;

The nature of this recently located material;

How much new information there is in the material which may not have been previously known and reported to Senate investigators; and

What we believe the most significant aspects of this find to be.

To begin, as to how we discovered these materials. The material had been sent to our Retired Records Center outside of Washington and was discovered there as a result of the extensive search efforts of an employee charged with responsibility for maintaining our holdings on behavioral drugs and for responding to Freedom of Information Act requests on this subject. During the Church Committee investigation in 1975, searches for MKULTRA-related material were made by examining both the active and retired records of all branches of CIA considered at all likely to have had association with MKULTRA documents. The retired records of the Budget and Fiscal Section of the Branch responsible for such work were not searched, however. This was because financial papers associated with sensitive projects such as MKULTRA were normally maintained by the Branch itself under the project file, not by the Budget and Fiscal Section. In the case at hand, however, the newly located material was sent to the Retired Records Center in 1970 by the Budget and Fiscal Section as part of its own retired holdings. The reason for this departure from normal procedure is not known. As a result of it, however, the material escaped retrieval and destruction in 1973 by the then-retiring Director of the Office as well as discovery in 1975 by CIA officials responding to Senate investigators.

The employee who located this material did so by leaving no stone unturned in his efforts to respond to FOIA requests. He reviewed all listings of material of this Branch stored at the Retired Records Center, including those of the Budget and Fiscal Section and, thus, discovered the MKULTRA-related documents which had been missed in the previous searches. In sum, the Agency failed to uncover these particular documents in 1973 in the process of attempting to destroy them; it similarly failed to locate them in 1975 in response to the Church Committee hearings. I am convinced that there was no attempt to conceal this material during the earlier searches.

Next, as to the nature of the recently located material, it is important to realize that the recovered folders are finance folders. The bulk of the material in them consists of approvals for advance of funds, vouchers, accountings, and the like—most of which are not very informative as to the nature of the activities that were undertaken. Occasional project proposals or memoranda commenting on some aspect of a subproject are scattered throughout this material. In general, however, the recovered material does not include status reports or other documents relating to operational considerations or progress in the various subprojects, though some elaboration of the activities contemplated does appear. The recovered documents fall roughly into three categories:

First, there are 149 MKULTRA subprojects, many of which appear to have some connection with research into behavioral modification, drug acquisition and testing or administering drugs surreptitiously.

Second, there are two boxes of miscellaneous MKULTRA papers, including audit reports and financial statements from "cut-out" (i.e., intermediary) funding mechanisms used to conceal CIA's sponsorship of various research projects.

Finally, there are 33 additional subprojects concerning certain intelligence activities previously funded under MKULTRA which have nothing to do either with behavioral modification, drugs, and toxins or with any other related matters.

We have attempted to group the activities covered by the 149 subprojects into categories under descriptive headings. In broad outline, at least, this presents the contents of these files. The activities are placed in the following 15 categories:

1. Research into the effects of behavioral drugs and/or alcohol :
 - 17 subprojects probably not involving human testing ;
 - 14 subprojects definitely involving tests on human volunteers ;
 - 19 subprojects probably including tests on human volunteers. While not known, some of these subprojects may have included tests on unwitting subjects as well ;
 - 6 subprojects involving tests on unwitting subjects.
 2. Research on hypnosis : 8 subprojects, including 2 involving hypnosis and drugs in combination .
 3. Acquisition of chemicals or drugs : 7 subprojects.
 4. Aspects of magicians' art useful in covert operations : e.g., surreptitious delivery of drug-related materials : 4 subprojects.
 5. Studies of human behavior, sleep research, and behavioral changes during psychotherapy : 9 subprojects.
 6. Library searches and attendance at seminars and international conferences on behavioral modification : 6 subprojects.
 7. Motivational studies, studies of defectors, assessment, and training techniques : 23 subprojects.
 8. Polygraph research : 3 subprojects.
 9. Funding mechanisms for MKULTRA external research activities : 3 subprojects.
 10. Research on drugs, toxins, and biologicals in human tissue ; provision of exotic pathogens and the capability to incorporate them in effective delivery systems : 6 subprojects.
 11. Activities whose objectives cannot be determined from available documentation : 3 subprojects.
 12. Subprojects involving funding support for unspecified activities connected with the Army's Special Operations Division at Ft. Detrick, Md. This activity is outline in Book I of the Church Committee Report, pp. 388-389. (See Appendix A, pp. 68-69. Under CIA's Project MKNAOMI, the Army Assisted CIA in developing, testing, and maintaining biological agents and delivery systems for use against humans as well as against animals and crops. The objectives of these subprojects cannot be identified from the recovered material beyond the fact that the money was to be used where normal funding channels would require more written or oral justification than appeared desirable for security reasons or where operational considerations dictated short lead times for purchases. About \$11,000 was involved during this period 1953-1960 : 3 subprojects.
 13. Single subprojects in such areas as effects of electro-shock, harassment techniques for offensive use, analysis of extrasensory perception, gas propelled sprays and aerosols, and four subprojects involving crop and material sabotage.
 14. One or two subprojects on each of the following :
 - "Blood Grouping" research, controlling the activity of animals, energy storage and transfer in organic systems ; and
 - stimulus and response in biological systems.
 15. Three subprojects cancelled before any work was done on them having to do with laboratory drug screening, research on brain concussion, and research on biologically active materials to be tested through the skin on human volunteers.
- Now, as to how much new the recovered material adds to what has previously been reported to the Church Committee and to Senator Kennedy's Subcommittee on Health on these topics, the answer is additional detail, for the most part : e.g., the names of previously unidentified researchers and institutions associated on either a witting or unwitting basis with MKULTRA activities, and the names of CIA officials who approved or monitored the various subprojects. Some new substantive material is also present : e.g., details concerning proposals for experimentation and clinical testing associated with various research projects, and a possibly improper contribution by CIA to a private institution. However, the principal types of activities included have, for the most part, either been outlined to some extent or generally described in what was previously available to CIA in the way of documentation and was supplied by CIA to Senate investigators. For example :

Financial disbursement records for the period 1960-1964 for 76 of the 149 numbered MKULTRA subprojects had been recovered from the Office of Finance by CIA and were made available to the Church Committee investigators in August or September 1975.

The 1963 Inspector General report on MKULTRA made available to both the Church Committee and Senator Kennedy's Subcommittee mentions electro-shock

and harassment substances (pp. 4, 16); covert testing on unwitting U.S. citizens (pp. 7, 10-12); the search for new materials through arrangements with specialists in universities, pharmaceutical houses, hospitals, state and federal institutions, and private research organizations (pp. 7, 9); and the fact that the Technical Service Division of CIA had initiated 144 subprojects related to the control of human behavior between 1953-1963 (p. 21).

The relevant section of a 1957 Inspector General report on the Technical Service Division was also made available to the Church Committee staff. That report discusses techniques for human assessment and unorthodox methods of communication (p. 201); discrediting and disabling materials which can be covertly administered (pp. 201-202); studies on magicians' arts as applied to covert operations (p. 202); specific funding mechanisms for research performed outside of CIA (pp. 202-203, 205); research being done on "K" (knockout) material, alcohol tolerance, and hypnotism (p. 203); research on LSD (p. 204); anti-personnel harassment and assassination delivery systems including aerosol generators and other spray devices (pp. 206-208); the role of Fort Detrick in support of CIA's Biological/Chemical Warfare capability (p. 208); and material sabotage research (p. 209). Much of this material is reflected in the Church Committee Report, Book I, pp. 385-422. (See Appendix A, pp. 65-102).

The most significant new data discovered are, first, the names of researchers and institutions who participated in the MKULTRA project and, secondly, a possibly improper contribution by CIA to a private institution. We are now in possession of the names of 185 non-government researchers and assistants who are identified in the recovered material dealing with the 149 subprojects. The names of 80 institutions where work was done or with which these people were affiliated are also mentioned.

The institutions include 44 colleges or universities, 15 research foundations or chemical or pharmaceutical companies and the like, 12 hospitals or clinics (in addition to those associated with universities), and 3 penal institutions. While the identities of some of these people and institutions were known previously, the discovery of the new identities adds to our knowledge of MKULTRA.

The facts as they pertain to the possibly improper contribution are as follows: One project involves a contribution of \$375,000 to a building fund of a private medical institution. The fact that a contribution was made was previously known; indeed it was mentioned in a 1957 Inspector General report on the Technical Service Division of CIA, pertinent portions of which had been reviewed by the Church Committee staff. The newly discovered material, however, makes it clear that this contribution was made through an intermediary, which made it appear to be a private donation. As a private donation, the contribution was then matched by federal funds. The institution was not made aware of the true source of the gift. This project was approved by the then DCI, and concurred in by CIA's top management at the time, including the then General Counsel who wrote an opinion supporting the legality of the contribution.

The recently discovered documents give a greater insight into the scope of the unwitting drug testing but contribute little more than that. We now have collaborating information that some of the unwitting drug testing was carried on in safehouses in San Francisco and New York City, and we have identified that three individuals were involved in this undertaking as opposed to the previously reported one person. We also know now that some unwitting testing took place on criminal sexual psychopaths confined at a State hospital and that, additionally, research was done on a knock-out or "K" drug in parallel with research to develop pain killers for cancer patients.

These, then are the principal findings identified to date in our review of the recovered material. As noted earlier, we believe the detail on the identities of researchers and institutions involved in CIA's sponsorship of drugs and behavioral modification is a new element and one which poses a considerable problem. Most of the people and institutions involved are not aware of Agency sponsorship. We should certainly assume that the researchers and institutions which cooperated with CIA on a witting basis acted in good faith and in the belief that they were aiding their government in a legitimate and proper purpose. I believe we all have a moral obligation to these researchers and institutions to protect them from any unjustified embarrassment or damage to their reputations which revelation of their identities might bring. In addition, I have a legal obligation under the Privacy Act not to publicly disclose the names of the individual researchers without their consent. This is especially true, of course, for

those researchers and institutions which were unwitting participants in CIA-sponsored activities.

Nevertheless, recognizing the right and the need of both the Senate Select Committee on Intelligence and the Senate Subcommittee on Health to investigate the circumstances of these activities in whatever detail they consider necessary, I am providing your Committee with all of the names on a classified basis. I hope that this will facilitate your investigation while protecting the individuals and institutions involved. Let me emphasize that the MKULTRA events are 12 to 25 years in the past. I assure you that the CIA is in no way engaged in either witting or unwitting testing of drugs today.

Finally, I am working closely with the Attorney General and with the Secretary of Health, Education and Welfare on this matter. We are making available to the Attorney General whatever materials he may deem necessary to any investigation he may elect to undertake. We are working with both the Attorney General and the Secretary of Health, Education and Welfare to determine whether it is practicable from this new evidence to attempt to identify any of the persons to whom drugs may have been administered unwittingly. No such names are part of these records, but we are working to determine if there are adequate clues to lead to their identification; and if so, how to go about fulfilling the Government's responsibilities in the matter.

TESTIMONY OF ADM. STANSFIELD TURNER, DIRECTOR OF CENTRAL INTELLIGENCE, ACCOMPANIED BY FRANK LAUBINGER, OFFICE OF TECHNICAL SERVICES; AL BRODY, OFFICE OF INSPECTOR GENERAL; ERNEST MAYERFIELD, OFFICE OF GENERAL COUNSEL; AND GEORGE L. CARY, LEGISLATIVE COUNSEL

Admiral TURNER. Thank you, Mr. Chairman. I would like to begin by thanking you and Senator Kennedy for having a joint hearing this morning. I hope this will expedite and facilitate our getting all the information that both of your committees need into the record quickly.

I would like also to thank you both for prefacing the remarks today by reminding us all that the events about which we are here to talk are 12- to 24-years old. They in no way represent the current activities or policies of the Central Intelligence Agency.

What we are here to do is to give you all the information that we now have and which we did not previously have on a subject known as Project MKULTRA, a project which took place from 1953 to 1964. It was an umbrella project under which there were numerous sub-projects for research, among other things, on drugs and behavioral modification. What the new material that we offer today is a supplement to the considerable material that was made available in 1975, during the Church committee hearings, and also to the Senate Subcommittee on Health and Scientific Research.

At that time, the CIA offered up all of the information and documents it believed it had available. The principal one available at that time that gave the greatest amount of information on this subject was a report of the CIA's Inspector General written in 1963, and which led directly to the termination of this activity in 1964, 13 years ago.

The information available in 1975 to the various investigating groups was indeed sparse, first because of the destruction of material that took place in 1973, as detailed by Senator Kennedy a minute ago, with the concurrence of the then Director of Central Intelligence and under the supervision of the Director of the Office of Technical Services that supervised Project MKULTRA.

The material in 1975 was also sparse because most of the CIA people who had been involved in 1953 to 1964 in this activity had retired from the Agency. I would further add that I think the material was sparse in part because it was the practice at that time not to keep detailed records in this category.

For instance, the 1963 report of the Inspector General notes:

Present practice is to maintain no records of the planning and approval of test programs.

In brief, there were few records to begin with and less after the destruction of 1973.

What I would like to do now, though, is to proceed and let you know what the new material adds to our knowledge of this topic, and I will start by describing how the material was discovered and why it was not previously discovered. The material in question, some seven boxes, had been sent to our Retired Records Center outside of the Washington area. It was discovered there as the result of an extensive search by an employee charged with the responsibility for maintaining our holdings on behavioral drugs and for responding to Freedom of Information Act requests on this subject.

During the Church committee investigation of 1975, searches for MKULTRA-related material were made by examining both the active and the retired records of all of the branches of CIA considered likely to have had an association with MKULTRA documents. The retired records of the Budget and Fiscal Section of the branch that was responsible for such work were not searched, however. This was because the financial paper associated with sensitive projects such as MKULTRA were normally maintained by the branch itself under the project title, MKULTRA, not by the Budget and Fiscal Section under a special budget file.

In the case at hand, however, this newly located material had been sent to the Retired Records Center in 1970 by the Budget and Fiscal Section of this branch as part of its own retired holdings. In short, what should have been filed by the branch itself was filed by the Budget and Fiscal Section, and what should have been filed under the project title, MKULTRA, was filed under budget and fiscal matters. The reason for this departure from the normal procedure of that time is simply not known, and as a result of it, however, the material escaped retrieval and destruction in 1973, as well as discovery in 1975.

The employee who located this material did so by leaving no stone unturned in his efforts to respond to a Freedom of Information Act request, or several of them, in fact. He reviewed all of the listings of material of this branch, stored at the Retired Records Center, including those of the Budget and Fiscal Section, and thus discovered the MKULTRA-related documents, which had been missed in the previous searches.

In sum, the agency failed to uncover these particular documents in 1973, in the process of attempting to destroy them. It similarly failed to locate them in 1975, in response to the Church committee hearings. I am personally persuaded that there is no evidence of any attempt to conceal this material during the earlier searches. Moreover, as we will discuss as we proceed, I do not believe the material itself is such that

there would be a motive on the part of the CIA to withhold this, having disclosed what it did in 1975.

Next, let me move to the nature of this recently located material. It is important to remember what I have just noted, that these folders that were discovered are finance folders. The bulk of the material in them consists of approvals for the advance of funds, vouchers, and accountings and such, most of which are not very informative as to the nature of the activities that they were supporting. Occasional project proposals or memoranda commenting on some aspect of a subproject are scattered throughout this material. In general, however, the recovered material does not include overall status reports or other documents relating to operational considerations, or to the progress on various subprojects, though some elaboration of the activities contemplated does appear from time to time.

There are roughly three categories of projects. First, there are 149 MKULTRA subprojects, many of which appear to have some connection with research into behavioral modification, drug acquisition and testing, or administering drugs surreptitiously. Second, there are two boxes of miscellaneous MKULTRA papers, including audit reports and financial statements from intermediary funding mechanisms used to conceal CIA sponsorship of various research projects.

Finally, there are 33 additional subprojects concerning certain intelligence activities previously funded under MKULTRA but which have nothing to do either with behavioral modifications, drugs and toxins, or any closely related matter.

We have attempted to group the activities covered by the 149 subprojects into categories under descriptive headings. In broad outline, at least, this presents the contents of these files. The following 15 categories are the ones we have divided these into.

First, research into the effects of behavioral drugs and/or alcohol. Within this, there are 17 projects probably not involving human testing. There are 14 subprojects definitely involving testing on human volunteers. There are 19 subprojects probably including tests on human volunteers and 6 subprojects involving tests on unwitting human beings.

Second, there is research on hypnosis, eight subprojects, including two involving hypnosis and drugs in combination.

Third, there are seven projects on the acquisition of chemicals or drugs.

Fourth, four subprojects on the aspects of the magician's art, useful in covert operations, for instance, the surreptitious delivery of drug-related materials.

Fifth, there are nine projects on studies of human behavior, sleep research, and behavioral change during psychotherapy.

Sixth, there are projects on library searches and attendants at seminars and international conferences on behavioral modifications.

Seventh, there are 23 projects on motivational studies, studies of defectors, assessments of behavior and training techniques.

Eighth, there are three subprojects on polygraph research.

Ninth, there are three subprojects on funding mechanisms for MKULTRA's external research activities.

Tenth, there are six subprojects on research on drugs, toxins, and biologicals in human tissue, provision of exotic pathogens, and the capability to incorporate them in effective delivery systems.

Eleventh, there are three subprojects on activities whose nature simply cannot be determined.

Twelfth, there are subprojects involving funding support for unspecified activities conducted with the Army Special Operations Division at Fort Detrich, Md. This activity is outlined in Book I of the Church committee report, pages 388 to 389. (See Appendix A, pp. 68-69).

Under CIA's Project MKNAOMI, the Army assisted the CIA in developing, testing, and maintaining biological agents and delivery systems for use against humans as well as against animals and crops.

Thirteenth, there are single subprojects in such areas as the effects of electroshock, harassment techniques for offensive use, analysis of extrasensory perception, gas propelled sprays and aerosols, and four subprojects involving crop and material sabotage.

Fourteenth, one or two subprojects on each of the following: blood grouping research; controlling the activities of animals; energy storage and transfer in organic systems; and stimulus and response in biological systems.

Finally, 15th, there are three subprojects canceled before any work was done on them having to do with laboratory drug screening, research on brain concussion, and research on biologically active materials.

Now, let me address how much this newly discovered material adds to what has previously been reported to the Church committee and to Senator Kennedy's Subcommittee on Health. The answer is basically additional detail. The principal types of activities included in these documents have for the most part been outlined or to some extent generally described in what was previously available in the way of documentation and which was supplied by the CIA to the Senate investigators.

For example, financial disbursement records for the period of 1960 to 1964 for 76 of these 149 subprojects had been recovered by the Office of Finance at CIA and were made available to the Church committee investigators. For example, the 1963 Inspector General report on MKULTRA made available to both the Church committee and the Subcommittee on Health mentions electroshock and harassment substances, covert testing on unwitting U.S. citizens, the search for new materials through arrangements with specialists in hospitals and universities, and the fact that the Technical Service Division of CIA had initiated 144 subprojects related to the control of human behavior.

For instance also, the relevant section of a 1957 Inspector General report was also made available to the Church committee staff, and that report discusses the techniques for human assessment and unorthodox methods of communication, discrediting and disabling materials which can be covertly administered, studies on magicians' arts as applied to covert operations, and other similar topics.

The most significant new data that has been discovered are, first, the names of researchers and institutions who participated in

MKULTRA projects, and second, a possibly improper contribution by the CIA to a private institution. We are now in the possession of the names of 185 nongovernment researchers and assistants who are identified in the recovered material dealing with these 149 subprojects.

There are also names of 80 institutions where work was done or with which these people were affiliated. The institutions include 44 colleges or universities, 15 research foundation or chemical or pharmaceutical companies or the like, 12 hospitals or clinics, in addition to those associated with the universities, and 3 penal institutions.

While the identities of some of these people and institutions were known previously, the discovery of the new identities adds to our knowledge of MKULTRA.

The facts as they pertain to the possibly improper contribution are as follows. One project involves a contribution of \$375,000 to a building fund of a private medical institution. The fact that that contribution was made was previously known. Indeed, it was mentioned in the 1957 report of the Inspector General on the Technical Service Division of CIA that supervised MKULTRA, and pertinent portions of this had been reviewed by the Church committee staff.

The newly discovered material, however, makes it clear that this contribution was made through an intermediary, which made it appear to be a private donation. As a private donation, the contribution was then matched by Federal funds. The institution was not made aware of the true source of the gift. This project was approved by the then Director of Central Intelligence and concurred in by CIA's top management including the then General Counsel, who wrote an opinion supporting the legality of the contribution.

The recently discovered documents also give greater insight into the scope of the unwitting nature of the drug testing, but contribute little more than that. We now do have corroborating information that some of the unwitting drug testing was carried out in what is known in the intelligence trade as safe houses in San Francisco and in New York City, and we have identified that three individuals were involved in this undertaking, whereas we previously reported there was only one person.

We also know now that some unwitting testing took place on criminal sexual psychopaths confined at a State hospital, and that additionally research was done on a knockout or K drug in parallel with research to develop painkillers for cancer patients.

These, then, are the principal findings identified to date in our review of this recovered material. As noted earlier, we believe the detail on the identities of researchers and institutions involved in CIA sponsorship of drug and behavioral modification research is a new element and one which poses a considerable problem. Most of the people and institutions involved were not aware of CIA sponsorship. We should certainly assume that the researchers and institutions which cooperated with CIA on a witting basis acted in good faith and in the belief that they were aiding their Government in a legitimate and proper purpose.

I believe that we all have a moral obligation to these researchers and institutions to protect them from any unjustified embarrassment

or damage to their reputations which revelation of their identities might bring. In addition, I have a legal obligation under the Privacy Act not to publicly disclose the names of the individual researchers without their consent.

This is especially true, of course, for those researchers and institutions which were unwitting participants in CIA sponsored activities.

Nonetheless, Mr. Chairman, I certainly recognize the right and the need of both the Senate Select Committee on Intelligence and the Senate Subcommittee on Health and Scientific Research to investigate the circumstances of these activities in whatever detail you consider necessary. I am providing your committee with all of the documentation, including all of the names, on a classified basis. I hope that this will facilitate your investigation while still protecting the individuals and the institutions involved.

Let me emphasize again that the MKULTRA events are 12 to 24 years in the past, and I assure you that CIA is in no way engaged in either witting or unwitting testing of drugs today.

Finally, I am working closely with the Attorney General on this matter. We are making available to the Attorney General whatever materials he may deem necessary to any investigations that he may elect to undertake. Beyond that, we are also working with the Attorney General to determine whether it is practicable from this new evidence to identify any of the persons to whom drugs may have been administered unwittingly. No such names are part of these records. We have not identified the individuals to whom drugs were administered, but we are trying now to determine if there are adequate clues to lead to their identification, and if so how best to go about fulfilling the Government's responsibilities in this matter.

Mr. Chairman, as we proceed with that process of attempting to identify the individuals and then determining what is our proper responsibility to them, I will keep both of these committees fully advised. I thank you, sir.

Senator INOUÉ. Thank you very much, Admiral Turner. Your spirit of cooperation is much appreciated. I would like to announce to the committee that in order to give every member an opportunity to participate in this hearing, that we would set a time limit of 10 minutes per Senator.

Admiral Turner, please give this committee the genesis of MKULTRA. Who or what committee or commission or agency was responsible for dreaming up this grandiose and sinister project, and why was it necessary? What is the rationale or justification for such a project and was the President of the United States aware of this?

Admiral TURNER. Mr. Chairman. I am going to ask Mr. Brody on my right, who is a long-time member of the CIA to address that in more detail. I believe everything that we know about the genesis was turned over to the Church committee and is contained in that material. Basically, it was a CIA-initiated project. It started out of a concern of our being taken advantage of by other powers who would use drugs against our personnel, and it was approved in the Agency. I have asked the question you just asked me, and have been assured that there is no evidence within the Agency of any involvement at higher echelons, the White House, for instance, or specific approval. That does not say there was not, but we have no such evidence.

Mr. Brody, would you amplify on my comments there, please?

Mr. BRODY. Mr. Chairman, I really have very little to add to that. To my knowledge, there was no Presidential knowledge of this project at the time. It was a CIA project, and as the admiral said, it was a project designed to attempt to counteract what was then thought to be a serious threat by our enemies of using drugs against us. Most of what else we know about it is in the Senate Church committee report.

Senator INOUE. Were the authorized members of the Congress made aware of this project through the budgetary process?

Mr. BRODY. We have no knowledge of that, sir.

Senator INOUE. Are you suggesting that it was intentionally kept away from the Congress and the President of the United States?

Admiral TURNER. No, sir. We are only saying that we have no evidence one way or the other as to whether the Congress was informed of this particular project. There are no records to indicate.

Senator INOUE. Admiral Turner, are you personally satisfied by actual investigation that this newly discovered information was not intentionally kept away from the Senate of the United States?

Admiral TURNER. I have no way to prove that, sir. That is my conviction from everything I have seen of it.

Senator INOUE. Now, we have been advised that these documents were initially discovered in March of this year, and you were notified in July of this year, or June of this year, and the committee was notified in July. Can you tell us why the Director of Central Intelligence was notified 3 months after its initial discovery, why the delay?

Admiral TURNER. Yes, sir. All this started with several Freedom of Information Act requests, and Mr. Laubinger on my left was the individual who took it upon himself to pursue these requests with great diligence, and got permission to go to the Retired Records Center, and then made the decision to look not only under what would be the expected subject files, but through every file with which the branch that conducted this type of activity had any conceivable connection.

Very late in March, he discovered these seven boxes. He arranged to have them shipped from the Retired Records Center to Washington, to our headquarters. They arrived in early April. He advised his appropriate superiors, who asked him how long he thought it would take him to go through these and screen them appropriately, clear them for Freedom of Information Act release.

There are, we originally estimated, 5,000 pages here. We now think that was an underestimation, and it may be closer to 8,000 pages. He estimated it would take about 45 days or into the middle of May to do that. He was told to proceed, and as he did so there was nothing uncovered in the beginning of these 149 cases that appeared particularly startling or particularly additive to the knowledge that had already been given to the Church committee, some details, but no major revelations.

He and his associates proceeded with deliberateness, but not a great sense of urgency. There were other interfering activities that came and demanded his time also. He was not able to put 100 percent of his time on it, and there did not appear to be cause for a great rush here. We were trying to be responsive to the Freedom of Information Act request within the limits of our manpower and our priorities.

In early June, however, he discovered two projects, the one related to K drugs and the one related to the funding at the institution, and realized immediately that he had substantial new information, and he immediately reported this to his superiors.

Two actions were taken. One was to notify the lawyers of the principal Freedom of Information Act requestor that we would have substantial new material and that it would be forthcoming as rapidly as possible, and the second was to start a memorandum up the chain that indicated his belief that we should notify the Senate Select Committee on Intelligence of this discovery because of the character at least of these two documents.

As that proceeded up from the 13th of June, at each echelon we had to go through the legal office, the legislative liaison office and at each echelon about the same question was asked of him: Have you gone through all of this, so that when we notify the Senate Select Committee we do not notify half of the important revelations and not the other half? The last thing I want, Mr. Chairman, is in any way to be on any topic, give the appearance on any topic of being recalcitrant, reluctant, or having to have you drag things out of me, and my subordinates, much to my pleasure, had each asked, have you really gone through these 8,000 pages enough to know that we are not going to uncover a bombshell down at the bottom?

By late June, about the 28th, this process reached my deputy. He notified me after his review of it on the 7th of July, which is the first I knew of it. I began reading into it. I asked the same probing question directly. I then notified my superiors, and on the 15th delivered to you my letter letting you know that we had this, and we have been working, many people, many hours since then, to be sure that what we are telling you today does include all the relevant material.

Senator INOUE. I would like to commend Mr. Laubinger for his diligence and expertise, but was this diligence the result of the Freedom of Information Act or could this diligence have been exercised during the Church hearings? Why was it not exercised?

Admiral TURNER. There is no question that theoretically this diligence could have been exercised at any time, and it may well be that the Freedom of Information Act has made us more aware of this. Would you speak for yourself, please.

Mr. LAUBINGER. I really don't attribute it, Senator, to diligence so much as thoroughness. If you can imagine the pressures under an organization trying to respond, which I think the CIA did at the time of the Church committee hearings, the hallways of the floor I am on were full of boxes from our records center. Every box that anyone thought could possibly contain anything was called up for search. It was one of a frantic effort to comply.

When the pressure of that situation cools down, and you can start looking at things systematically, you are apt to find things that you wouldn't under the heat of a crash program, and that is what happened here.

Senator INOUE. Thank you very much. Senator Kennedy?

Senator KENNEDY. Admiral Turner, this is an enormously distressing report that you give to the American Congress and to the American people today. Granted, it happened many years ago, but what we are

basically talking about is an activity which took place in the country that involved the perversion and the corruption of many of our outstanding research centers in this country, with CIA funds, where some of our top researchers were unwittingly involved in research sponsored by the Agency in which they had no knowledge of the background or the support for.

Much of it was done with American citizens who were completely unknowing in terms of taking various drugs, and there are perhaps any number of Americans who are walking around today on the east coast or west coast who were given drugs, with all the kinds of physical and psychological damage that can be caused. We have gone over that in very careful detail, and it is significant and severe indeed.

I do not know what could be done in a less democratic country that would be more alien to our own traditions than was really done in this narrow area, and as you give this report to the committee, I would like to get some sense of your own concern about this type of activity, and how you react, having assumed this important responsibility with the confidence of President Carter and the overwhelming support, obviously, of the Congress, under this set of circumstances.

I did not get much of a feeling in reviewing your statement here this morning of the kind of abhorrence to this type of past activity which I think the American people would certainly deplore and which I believe that you do, but could you comment upon that question, and also perhaps give us what ideas you have to insure that it cannot happen again?

Admiral TURNER. Senator Kennedy, it is totally abhorrent to me to think of using a human being as a guinea pig and in any way jeopardizing his life and his health, no matter how great the cause. I am not here to pass judgment on my predecessors, but I can assure you that this is totally beyond the pale of my contemplation of activities that the CIA or any other of our intelligence agencies should undertake.

I am taking and have taken what I believe are adequate steps to insure that such things are not continuing today.

Senator KENNEDY. Could you tell us a little bit about that?

Admiral TURNER. I have asked for a special report assuring me that there are no drug activities extant, that is, drug activities that involve experimentation. Obviously, we collect intelligence about drugs and drug use in other countries, but there are no experimentations being conducted by the Central Intelligence Agency, and I have had a special check made because of another incident that was uncovered some years ago about the unauthorized retention of some toxic materials at the CIA. I have had an actual inspection made of the storage places and the certification from the people in charge of those that there are no such chemical biological materials present in our keeping, and I have issued express orders that that shall not be the case.

Beyond that, I have to rely in large measure on my sense of command and direction of the people and their knowledge of the attitude I have just expressed to you in this regard.

Senator KENNEDY. I think that is very commendable.

Admiral TURNER. Thank you, sir.

Senator KENNEDY. I think it is important that the American people understand that.